

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 8, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

RECOGNITION OF DICKY SHANOR FOR HIS SERVICE AS CITY COUNCIL PRESIDENT FOR 2017. Mayor Orr expressed appreciation to Mr. Shanor for his service as Council President in 2017 and presented him with a gavel plaque. Mr. Shanor briefly reflected on the past year generally and thanked his family, co-elected officials and City staff for their support.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Carol Intlekofer, City Clerk, advised that Item #28(a) was inadvertently placed on the Consent Agenda and as the item is an announcement she would be reading the item into the record. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 20, 2017. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Cook. Upon inquiry, Vicki Nemecek, Public Works Director, provided information on a voucher payable to Noel Griffith Jr. & Associates, which was postponed for action at the December 20, 2017 Council meeting, stating services were provided in conjunction with a building remodel project to accommodate moving municipal court into the municipal building. She explained funding for the project (6th Penny Sales Tax); anticipated future contract to come before the governing body, and emergency procurement procedures that were followed to meet the timeline to accommodate moving municipal court. Concern was expressed over the process of paying for professional services of this type (under the \$35,000 threshold) without a contract approved by the governing body when overall services to the same vendor related to a project will exceed that amount; what constitutes an emergency situation, and further review of the process. Mayor Orr provided information on the temporary housing of municipal court within the municipal building due to the building not being financially feasible as a permanent court location due to parking and ADA issues, and, in response to inquiry, stated a traffic/parking analysis was not conducted prior to the court moving into the building as funding was not available. Motion to approve carried. Voting “yes” – all members of the governing body.

Mayor Orr opened a Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for all of Tracts 31 and 32 and that portion of James Drive intervening; and a portion of Tract 39, Hill Heights Addition; and adjacent

portions of Gysel Place and Van Buren Ave.; situated in Section 23, Township 14 North, Range 66 West of the 6th P.M., County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard). Eric Hammer, Planning and Development office, provided information on the property requested by the landowner to be annexed, and reviewed requirements of and compliance with annexation conditions contained in state statutes. Upon inquiry, Mr. Hammer advised there have been several phone calls received from individuals requesting information on the proposed annexation but no formal comment filings have been submitted. There being no further comments or input and purpose of the public hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C) (postponed from 12/20/2017). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Mr. Roybal moved to postpone to January 22, 2018 at the request of staff, seconded by Mr. Cook. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 1.4.4.f., Industrial Use definition, of the UDC to clarify what land uses are subject to the Moderate Industrial and the Industrial use categories. Susanna Montana, Planning and Development Department, provided information in response to comments made and questions raised during the December 20, 2017 City Council and January 3, 2018 Public Services Committee meetings, stating that concerns over where impoundment yards would be allowed have been further clarified in a proposed substitute ordinance dated January 8, 2018. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Mr. Roybal moved to amend by substitute dated January 2, 2018, seconded by Mr. Case. Motion to amend failed. Voting “no” – all members of the governing body. Mr. Roybal moved to amend by substitute dated January 8, 2018, seconded by Mr. Cook. Upon inquiry, Ms. Montana explained the zoning category for downtown is CBD (Central Business District) and that impoundment lots would not be allowed in that category, and clarified where changes would be made in UDC sections regarding the new wording relating to impoundment yards. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#4214)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, all of Tracts 31 and 32 and that portion of James Drive intervening; and a portion of Tract 39, Hill Heights Addition; and adjacent portions of Gysel Place and Van Buren Ave.; situated in Section 23, Township 14 North, Range 66 West, of the 6th P.M., County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County AR Agricultural Residential to MR Medium-density Residential and MUB Mixed-use Business Emphasis for all of Tracts 31 and 32; and a portion of Tract 39, Hill Heights Addition; situated in Section 23, Township 14 North, Range 66 West, of the 6th P.M., County of Laramie, State of Wyoming (located east of and

adjacent to Van Buren Avenue, north of Dell Range Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Vacating the 16-foot alley situated in Block 329, Original City, and Federal Court located in Block 329, City of Cheyenne, Laramie County, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Vacating that portion of the 16-foot alley right-of-way lying east of the Burlington Northern Railroad Spur Track right-of-way in Block 412, adjacent to Lots 1 thru 8, and 16 thru 22, Block 412, Original City, City of Cheyenne, Laramie County, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Sections 1.4.4.a and c, Section 5.1, Table 5-1, Section 5.7.5, and Table 7-10 of the UDC to rename and clarify the definition for group dwelling, to combine and clarify the definitions for adult care – assisted living and adult care – nursing home land uses, combining assisted living facilities, nursing homes and group housing for specific use standards, clarifying where assisted living/nursing homes would be permitted, and adding residential and nonresidential zoning districts where group housing would be allowed as a conditional use – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Designating local banks as depositories for municipal funds. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Luna. Mr. White moved to amend by substitute dated December 20, 2017, seconded by Mr. Luna. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#5903)

[CA] RESOLUTION – Supporting the City of Cheyenne’s continuing participation in the State Small Business Credit Initiative (‘SSBCI’) and Wyoming Smart Capital Network (‘WSCN’) Program; approving program changes through an amendment to the services agreement, including geographic boundaries, board, and the Credit Guaranty and Seed Capital Network Program, and retaining the majority of the original ‘SSBCI’ rules as modified by the ‘WSCN’. Motion (per Consent Agenda) carried. (#5904)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Pershing Marketplace, 2nd Filing, a replat of all of Lot 1, Block 1, Pershing Marketplace, 1st Filing, situated in Section 34, T.14N., R.66W., 6th P.M., City of Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of N. College Drive and E. Pershing Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Cheyenne Hills Church Subdivision, 2nd Filing, a replat of a portion of Lot 1 Block 1 of Cheyenne Hills Church Subdivision being situated in a portion of the N½ NE¼ of Section 25, Township 14 North, Range 66 West, of the Sixth Principal Meridian, Laramie County, Wyoming (located south of and adjacent to US Highway 30, west of Christensen Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Treadway Subdivision, a replat of Tracts 1, 2, 3 & 4, Ultrea Subdivision, situated in Section 8,

T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of and adjacent to W. Allison Road, east of Walterscheid Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to execute State Historic Preservation Office Certified Local Government (CLG) grant agreements for three 2018 CLG grants – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Announcing the City of Cheyenne’s intent to expend funds to enhance the Depot Plaza by constructing a water feature for economic development purposes, to include a historically important statue – referred to Finance committee. (Sponsors – Mr. Case, Mr. Laybourn and Mr. Roybal)

[CA] RESOLUTION – Adopting the Wyoming Region 7 Hazard Mitigation Plan for the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] County Preliminary Plat of Hawk’s Landing Subdivision, a replat of a portion of Capitol Tracts, Tract 8 being situated in a portion of the NE¼ NW¼, Section 18, T13N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to York Avenue, south of College Drive) – referred to Public Services Committee.

[CA] Service Agreement between the City of Cheyenne, Community Recreation and Events Department, and Wyoming Beverage, Cheyenne, Wyoming, for non-alcoholic beverage concessions for the Ice and Events Center. Motion (per Consent Agenda) carried (amount not to exceed \$50,439.00 annually). (#6774)

[CA] Professional Services Agreement between the City of Cheyenne, Police Department, and Top-Flight Maintenance, Cheyenne, Wyoming, for the provision of cleaning services for the Cheyenne Public Safety Center. Motion (per Consent Agenda) carried (amount not to exceed \$4,203.25 per month). (#6775)

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for epoxy striping (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives Division, and State of Wyoming, Department of Family Services, for kinship advocacy services for displaced, at-risk youth – referred to Finance Committee.

[CA] Consideration of Bid #E-12-18 for furnishing transit vehicle wraps for the Transit Division, and authorizing the Mayor and City Clerk to execute a Professional Services Agreement between the City of Cheyenne, Transit Division, and Wyoming Signs, LLC, Mills, Wyoming, in conjunction with the bid – referred to Finance Committee.

[CA] Consideration of Bid #E-15-18 for furnishing one new in-stock 71-passenger bus for the Community Recreation and Events Department, Latchkey Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of RFP #13-18 to provide a play system and safety surfacing in Holliday Park, and authorizing the Mayor and City Clerk to execute a Professional Services Agreement

between the City of Cheyenne, Community Recreation and Events Department, and Great Western Park and Playground, Inc., Wellsville, Utah, in conjunction with the RFP (Community Development Block Grant funds) – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6552 between the City of Cheyenne and HDR, Inc., Cheyenne, Wyoming, for additional design modifications, adjustment to construction engineering services, and any required additional services for the Prairie Avenue and Frontier Mall Intersection Improvements Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6066 between the City of Cheyenne and BenchMark Engineers, P.C., Cheyenne, Wyoming, for services in connection with the Christensen Road Overpass and Corridor Project (1% Specific Purpose Sales and Use Tax) – referred to Finance Committee.

Announcement was made that due to the Martin Luther King Holiday on Monday, January 15, 2018, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 104, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 16, 2018 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 17, 2018 at Noon.

Under other business:

Shawn Alexander expressed concern over burglar alarm permitting and false alarm fees, and requested review of false alarm provisions.

Upon request by Mr. Johnson regarding status of the vacant Greenway Coordinator staff position, Mayor Orr explained the position will be opened for applications soon.

Mr. Johnson inquired as to the available number of cemetery spaces in City-owned cemeteries. Carol Intlekofer, City Clerk, advised she would research with Cemetery grounds staff and provide information to the governing body.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:44 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
January 19, 2018